

BEFORE THE
FEDERAL MARITIME COMMISSION

Cc:
OGC
ALJG2)
OS
CADRS

Case No.: 18-09

HANLON SCULPTURE STUDIO

Complainant,

vs.

SAE WORLDTRANS LOGISTICS
f/k/a WORLDTRANS

Respondent.

FORMAL VERIFIED COMPLAINT



Hanlon Sculpture Studio (hereinafter HSS) by its attorney David T. Schlendorf
complaining of the respondent SAE Worldtrans Logistics f/k/a Worldtrans (hereinafter
Worldtrans) states as follows:

PARTIES

1. HSS, a Limited Liability Corporation duly organized under the laws of New Jersey with a principle place of business 281 Rivers Edge Lane, Toms River, NJ 08755.
2. Worldtrans is a duly licensed common carrier by the Federal Maritime Commission.
3. Worldtrans is operating at 7130 Miramar Rd., Suite 100A, San Diego, CA 92121.

JURISDICTION

4. FMC has subject matter jurisdiction over the claims in the action under the shipping act of 1984, 46 USC 40101-41102.

FACTUAL ALLEGATIONS

5. Upon information and belief, in or around August 2017 HSS engaged the services of Worldtrans to ship a steel sculpture from Fujian China to Providence, RI.

6. HSS paid \$103,952.58 for the cost of the above referenced shipping.
7. HSS was never provided a written contract. No agreement was ever provided.
8. HSS was never provided any rates for the cost of Ocean shipping
9. On or about September 14, 2018 the sculpture was damaged when it collided with an over pass seven miles from its destination. The pilot car allegedly provided to my client was not on site nor was any explanation ever given for its absence.
10. To date my client has never received assistance or been reimbursed for damages to the sculpture through Worldtrans insurance carrier.
11. The logistics company hired by Worldtrans, SJR Logistics Group, never paid the trucking company, Landstar Trucking. The logistics company was hired without the knowledge of HSS.
12. Landstar Trucking threatened a lien against Providence College and to honor contractual obligations HSS paid Landstar for a second time after Worldtrans refused to do so.
13. Upon information and belief Worldtrans has failed to rectify any of the above issues or renumerate HSS for the Studios losses.
14. Also in September of 2017 Worldtrans charged HSS \$20,051.15 to fly a fiberglass Sculpture from Fujian China to Auburn Alabama.
15. HSS was never provided any agreement for this shipment nor was HSS informed that the estimated tariff rate was approximately \$7,000.
16. This cost differential was never explained to HSS.

FIRST CAUSE OF ACTION

17. Complainant reasserts paragraphs 1-16.
18. Respondent violated Section 41102(b)&(c) in such that Respondent operated without

an agreement with HSS, did not enforce reasonable regulations and practices relating to record handling, storage or delivering property and by failing to provide account pricing or explanation of charges.

DAMAGES

19. As a result of the foregoing, HSS suffered damages of \$90,000 (approximate overcharge for Providence shipping) \$14,000 (approximate overcharge for Auburn, Alabama shipping) and \$11,200 to reimburse Landstar Trucking for its loss.

20. Furthermore, HSS suffered damage to its professional reputation and lost approximately \$350,000 in completing the contractual work with Providence College.

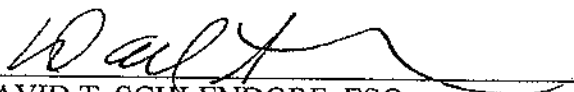
21. HSS also estimated approximately \$11,000 in professional fees in an attempt to resolve these disputes with Worldtrans.

22. The total damage figure is approximately \$476,200.

REQUEST FOR A HEARING

23. Complainant respectfully requests a hearing in either Washington, DC or Los Angeles, CA.

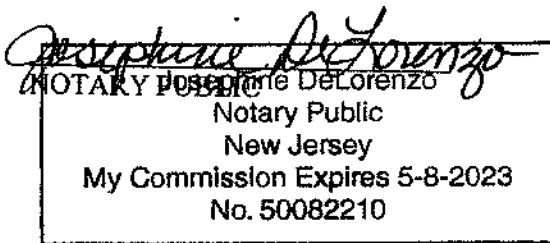
By:


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VERIFICATION

Brian Hanlon, being duly sworn, states that he is the Founder and President of HSS (Complainant), and that the forgoing is true to his own knowledge, except as to matters herein stated to be alleged on information and belief. As to the matters stated to be alleged on information and belief, the Complainant believes them to be true.

Subscribed and sworn to before me this 20 day of September 2018.



A handwritten signature in black ink, appearing to read "Brian P. Hanlon". The signature is written in a fluid, cursive style with a long horizontal stroke at the end.

BRIAN HANLON, PRESIDENT

HANLON SCULPTURE STUDIO LLC